

IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS

IN THE MATTER OF:

DIAL No. 26DBBH0005

KEITH R. KELLER

**FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER**

RESPONDENT.

On May 27, 2025, the Iowa Board of Behavioral Health Professionals (Board) issued a Notice of Hearing and Statement of Charges to Respondent Keith R. Keller, charging the Respondent with:

- (1) Representing himself as a licensed social worker when his license is on inactive status, pursuant to Iowa Administrative Code rule 645-283.2(26).¹
- (2) Practicing social work after the expiration of the required license, pursuant to Iowa Administrative Code rule 645-283.2(12)² and 645-282.2(17).³
- (3) Failure to cooperate with an investigation of the board, pursuant to Iowa Administrative Code rule 645-283.2(19).⁴

The hearing was held via video conference on January 5, 2026. This case was delegated in full to Administrative Law Judge Emily Kimes-Schwiesow pursuant to Iowa Code section 272C.6(1). Assistant Attorney General Samantha Wagner represented the state of Iowa. The Respondent failed to appear. The hearing was closed to the public based

¹ The Respondent was charged under 645-283.2(26), but the administrative rules were subsequently changed. This rule has been moved to 481-504.2(24).

² The Respondent was charged under 645-283.2(12), but the administrative rules were subsequently changed. This rule has been moved to 481-504.2(10).

³ The Respondent was charged under 645-283.2(17), but the administrative rules were subsequently changed. This rule has been moved to 481-884.4(17).

⁴ The Respondent was charged under 645-282.2(19), but the administrative rules were subsequently changed. This rule has been moved to 481-504.2(16).

upon a request prior to hearing from the Respondent, pursuant to Iowa Code section 272C.6(1).

THE RECORD

The record includes the testimony of investigator Matthew Celentano, and State's Exhibits 1-3. (See exhibit index for descriptions).

FINDINGS OF FACT

1. On February 17, 2015, the Board issued the Respondent social work masters level license number 075011, which expired on December 31, 2022. (Ex. 1).
2. On August 16, 2023, the Board received a complaint against the Respondent. The matter was assigned to health professions investigator Matthew Celentano. Investigator Celentano checked the Respondent's licensure status and found his license had expired in December 2022. Respondent is employed as a social worker in Keokuk, Iowa. On August 9, 2024, investigator Celentano reviewed the website for Respondent's employer. Respondent was described as a licensed master social worker specializing in individuals, couples, adolescents, trauma focused cognitive behavioral therapy, cognitive behavioral therapy, mental health first aid, and substance abuse therapy. Investigator Celentano called the employer. They confirmed Respondent worked there and was taking new clients. (Celentano testimony; Ex. 2)
3. On August 14, 2024, Investigator Celentano mailed a letter to the Respondent notifying him of the complaint, as well as the concern that he was practicing in Iowa with an inactive license. A response was requested by August 30. No response was received. On September 3, Investigator Celentano spoke with the Respondent via telephone. Respondent confirmed he had failed to renew his license and was concerned about his ability to pass a licensure examination. He indicated his supervisor was aware of the issue and would be submitting a written response by September 4. No written response was received, and all of Investigator Celentano's subsequent attempts to communicate with the Respondent were unsuccessful. He was unable to gather any information regarding the original complaint. (Celentano testimony; Ex. 2, 3)
4. On May 27, 2025, the Board found probable cause to file a Notice of Hearing and Statement of Charges charging the Respondent with representing himself as a licensed social worker while his license was inactive, practicing after his license had expired, and failing to cooperate with the Board's investigation. Respondent was served via certified

mail on October 28, 2025. The original hearing date was continued at the Respondent's request. Respondent agreed to the new hearing date and time, but failed to appear for hearing. The presiding officer proceeded with the hearing in his absence pursuant to 481 IAC 506.21. (Notice of Hearing and Statement of Charges; Return of Service; Continuance Order).

CONCLUSIONS OF LAW

I. Representing oneself as a licensed social worker

645 IAC 283.2(26) provides, in relevant part:

645 IAC 283.2 The board may impose any of the disciplinary sanctions provided in rule 645—283.3(272C) when the board determines that the licensee is guilty of any of the following acts or offenses:

...

26. Representing oneself as a licensee when one's license ... is on inactive status.

On February 17, 2015, Respondent was issued Iowa social work masters level license number 075011. The license expired on December 31, 2022. On August 9, 2024, investigator Celentano reviewed the website for Respondent's Iowa employer. Respondent was described as a licensed master social worker on the website.

The preponderance of the evidence established that the Respondent violated Iowa Administrative Code 645 IAC 283.2(26), when he continued to represent himself as a licensed master social worker on his employment website after his Iowa license had expired.

II. Practicing social work without a license

645 IAC 283.2(12) provides in relevant part:

645 IAC 283.2 The board may impose any of the disciplinary sanctions provided in rule 645—283.3(272C) when the board determines that the licensee is guilty of any of the following acts or offenses:

...

(12) Violation of a regulation, rule, or law of this state, another state, or the United States, which relates to the practice of social work.

...

(17) A social worker will not ... (b) practice a professional discipline without an appropriate license or after expiration of the required license.

As provided above, the Respondent is employed as a social worker in Keokuk, Iowa. He is described as a licensed master social worker on the business' website. His specialties are listed as the following: individuals, couples, adolescents, trauma focused cognitive behavioral therapy, cognitive behavioral therapy, mental health first aid, and substance abuse therapy. On August 9, 2024, Investigator Celentano called Respondent's employer and confirmed he was still working there and was taking new clients. There is no dispute that Respondent's Iowa social work masters level license expired on December 31, 2022.

The preponderance of the evidence established that the Respondent continued to practice as a social worker in Iowa after his license had expired in violation of 645 IAC 283.2(12) and (17).

III. Failure to cooperate with a Board investigation

645 IAC 283.2(19) provides, in relevant part:

645 IAC 283.2 The board may impose any of the disciplinary sanctions provided in rule 645—283.3(272C) when the board determines that the licensee is guilty of any of the following acts or offenses:

...

(19) ... failure to cooperate with an investigation of the board.

Respondent failed to respond to Investigator Celentano's August 14, 2024 request for information. During a telephone call on September 3, Respondent confirmed he had received the investigator's letter and was aware his license had expired. Respondent asserted that his supervisor was also aware of the situation and would be sending a written response. No response was received. Investigator Celentano's continued attempts to communicate with the Respondent via telephone and email were all unsuccessful. The preponderance of the evidence established that the Respondent failed to cooperate with the Board's investigation in violation of 645 IAC 283.2(19).

DECISION AND ORDER

IT IS THEREFORE ORDERED that license number 075011, issued to Respondent Keith R. Keller, is hereby SUSPENDED for a minimum period of 90 days, effective immediately upon service of this Decision and Order.

IT IS FURTHER ORDERED that the Respondent's license may not be reinstated unless he fully complies with the requirements of 481 Iowa Administrative Code 506.32 and establishes that the reason for the suspension of his license no longer exists and that it is in the public interest for his license to be reinstated.

IT IS FURTHER ORDERED that upon receipt of this Decision and Order, Respondent shall immediately notify all current employers of this Order and its requirements; and Respondent shall disclose this Order to all future employers before commencing employment.

RESPONDENT IS HEREBY NOTIFIED that this Decision and Order, when fully executed, is a permanent public record and will be made available for inspection and copying in accordance with the requirements of Iowa Code chapter 22 and 272C.

Appeal Rights

The Board's rule regarding an appeal of a proposed decision by an administrative law judge found at 481 Iowa Administrative Code 506.8(2) provides as follows:

- (a) Appeal by party. Any adversely affected party may appeal a proposed decision to the board within 30 days after issuance of the proposed decision.
- (b) Review. The board may initiate review of the proposed decision on its own motion at any time within 30 days following the issuance of the proposed decision.
- (c) Exhaustion. A party must timely appeal a proposed decision to the board in order to adequately exhaust administrative remedies.
- (d) Notice of appeal. An appeal of a proposed decision is initiated by the filing of a timely notice of appeal with the board. The notice of appeal must be signed by the appealing party or an attorney for that party and contain a certificate of service. The notice shall specify:
 - (1) The party initiating the appeal;
 - (2) The proposed decision or order being appealed;

- (3) The specific findings or conclusions to which exception is taken and any other exceptions to the decision or order;
- (4) The relief sought; and
- (5) The grounds for relief.

cc:

Keith Keller, Respondent (First Class and Electronic Mail)

Attorney General's Office (AEDMS)

DIAL, Board of Behavioral Health Professionals (AEDMS)

Case Title: IN THE MATTER OF KEITH R KELLER (23-0296)
Case Number: 26DBBH0005
Type: Order

IT IS SO ORDERED.

A handwritten signature in black ink, appearing to read "Emily Kimes-Schwiesow", with a long horizontal flourish extending to the right.

Emily Kimes-Schwiesow, ALJ